

The M.P. State Pencil Karmkar Kalyan Nidhi Rules, 1983

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State of Madhya Pradesh - Act

The M.P. State Pencil Karmkar Kalyan Nidhi Rules, 1983

MADHYA PRADESH

India

The M.P. State Pencil Karmkar Kalyan Nidhi Rules, 1983

Rule THE-M-P-STATE-PENCIL-KARMKAR-KALYAN-NIDHI-RULES-1983 of 1983

Published on 17 September 1984

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The M.P. State Pencil Karmkar Kalyan Nidhi Rules, 1983

Published vide Notification No. 4755-16-13, dated 17-9-1984, M.P. Rajpatra, Part 4 (Ga), dated 8-3-1985, at pp. 108-120

In exercise of the powers conferred by Section 21 of the Madhya Pradesh State Pencil Karmkar Kalyan Nidhi Adhiniyam, 1982 (No. 13 of 1983) the State Government hereby makes the following rules, the same having been previously published as required by sub-section (1) of Section 21 of the said Act, namely :-

1.

Short title.

- These rules may be called the [Madhya Pradesh State Pencil Karmkar Kalyan Nidhi Rules, 1983]

[W.e.f. 1-8-1985.]

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2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Madhya Pradesh State Pencil Karmkar Kalyan Nidhi Adhiniyam, 1982 (No. 13 of 1983);

(b)

"Form" means a form appended to these rules;

(c)

"Section" means a section of the Act;

(d)

words and expressions used in these rules but not defined shall have the meaning assigned to them in the Act.

3.

Register of Production.

- Every Occupier shall maintain a register in form 'A' indicating the quantity of Slate Pencils manufactured.

4.

Collection of contribution.

- Any amount which is required to be paid or may be paid under sub-section (2) of Section 3 shall be paid in cash or by bank draft drawn in the name of the Secretary of the Board, or by such other mode as may be approved by the Board. Receipt for amount received shall be issued by the Secretary or by any other officer authorised by this Board in the behalf in Form 'B'.

5.

Submission of Statement of Slate Pencil Manufacture.

- The occupier shall submit to the Secretary of the Board in Form 'C' a Statement of the quantum of Slate pencils manufactured during the period 1st December to 31st May and 1st June to 30th November on or before 15th June and on or before 15th December, respectively.

6.

Constitution of Board.

- There shall be 3 representatives of the occupiers, 3 representatives of the workers under clause (b) and 3 independent members under clause (c) of sub-section (3) of Section 4.

7.

Meeting of Board.

(1)

The Board shall meet at least once every quarter and as often as may be necessary.

(2)

All members of the Board shall be given seven clear days notice of a meeting specifying the date, time and place of the meeting and the business to be transacted thereat:

Provided that seven clear days notice shall not be necessary where, in the opinion of the Chairman, business of an urgent nature is to be transacted.

(3)

Every meeting of the Board shall be presided over by the Chairman or if the Chairman is, for any reason, unable to attend it, by such one of the members present, as may be chosen, by the meeting, to be the Chairman for occasion.

(4)

The number of members necessary to constitute quorum at a meeting of the Board shall be five of whom one each shall be representative of the occupiers and the workers and one shall be independent.

(5)

If there is no quorum present as laid down in sub-rule (4), the Chairman shall, after waiting for thirty minutes from the time fixed for the meeting, adjourn the meeting to another day and time as he may reasonably fix. A notice of such adjourned meeting shall be sent to every member of the Board and the business fixed for the original meeting shall be brought before the adjourned meeting and may be disposed of at such meeting, whether there be a quorum present or not.

8.

Allowances of Chairman and members.

- The Chairman and member of the Board shall be paid such allowances and at such rate as may be determined by the State Government from time to time.

9.

Voting and decisions.

- All questions placed before the meeting of the Board shall be decided by a majority of the members present and voting at the meeting, the Chairman having a second and casting vote in case of equality of votes.

10.

Minutes of Meeting.

- The Secretary, and in his absence any other official of the Board authorised by the Chairman, shall record the minutes of the proceedings of the meeting of the Board and shall include therein the names of the members present. A copy of such minutes shall be submitted to the State Government as soon as they are confirmed by the Board.

11.

Accounts of Fund.

(1)

The accounts of the fund for each financial year ending 31st March shall be prepared and maintained by the Accounts Officer in Form 'D'.

(2)

The annual Statement of accounts of the Board shall be prepared in Form 'E'

12.

Registers to be maintained by the Board.

- The Board shall cause to be maintained the following registers :-

(a)

Cash Book;

(b)

Register of contribution received under Section 7;

(c)

Register containing the Minutes of proceedings of the Board;

(d)

Register of immovable property of the Board;

(e)

Register of movable property of the Board;

(f)

Register of grant-in-aid paid under clause (a) of sub section (2) of Section 8;

(g)

Register of expenditure on medical treatment under clause (b) of sub-section (2) of section 8;

(h)

Separate registers on expenditure in providing facilities mentioned in clauses (c) to (i) of sub-section (2) of Section 8;

(i)

Separate Registers of loans and financial assistance advanced under clause (k) of sub-section (2) of Section 8;

(j)

Fees register for welfare facilities register;

(k)

Registers relating to strength of staff, their attendance, earned leave, casual leave salary' advances and such other register as the Secretary may deem necessary' for the proper administration of the Board.

13.

Application for grant of loan.

(1)

An application for grant-in-aid or loan from the fund for purposes mentioned in sub-section (2) of Section 8 shall be made to the Secretary of the Board in duplicate with full particulars about the purposes for which such grant or loan is necessary.

(2)

Within thirty days of the receipt of an application under sub-rule (1), the Secretary' of the Board shall place it, with his remark, before the Board for consideration :

Provided that in the case of an application for grant-in-aid under clause (a) of sub-section (2) of Section 8, the Secretary of the Board shall submit such application to the Board within fifteen days of its receipt.

(3)

The Board shall take a decision on the application submitted to it under sub-rule (2) subject to the provisions of the budget of the Board.

14.

Mode of Payment from Fund.

- Payment from the fund shall be made :-

(a)

where the amount payable is less than rupees one hundred in cash; and

(b)

where the amount payable is rupees one hundred and more through bank draft or cheque issued by the Secretary of the Board :

Provided that in a particular case the Board may, for special reasons to be recorded, authorise payment in cash in respect of any amount payable by it.

15.

Staff of Board.

(1)

Besides the Secretary of the Board to be appointed by the State Government under sub-section (2) of Section 10, the Board shall have on Accounts Officer and one Welfare Supervisor and such other executive and clerical staff as the Board may determine with the previous approval of the State Government.

(2)

Appointment to the Post of Secretary shall be made either :-

(a)

by deputing an officer not below the rank of Labour Officer from the Labour Commissioner's organisation;

(b)

by deputing an officer not below the rank of a Labour officer of any other department of the State Government :

Provided that the officer referred to in clauses (a) and (b) above may either be deputed to work as whole time Secretary or to work as Secretary in addition to his own duties;

(c)

by appointing any person who has retired from State Government service and was holding a post, at the time of retirement, not below the rank of a Labour Officer; or

(d)

by nomination from among persons :-

(i)

who are not less than 30 years and more than 43 years of age;

(ii)

who holds a degree in Economics or Sociology of any university in the State or any other University outside the State as may be recognised by the State Government in this behalf, or who holds a degree in any other subject of any University in the State or any other University outside the State as may be recognised by the State Government in this behalf and a diploma in Labour Welfare or Social Science of any institute recognised by the State Government in this behalf; and

(iii)

who have sufficient knowledge of Hindi and are able to speak, read and write in that language.

(3)

Appointment to the post of Accounts Officer shall be made either :-

(a)

by deputing, an officer of the State Government who is holding or has held any post of Senior Accounts Officer or Junior Accounts Officer or Accounts Officer;

(b)

by appointing any person who has retired from State Government service and possess adequate knowledge of accounts; or

(c)

by nomination from among persons-

(i)

who are not less than 30 years and more than 45 years of age;

(ii)

who holds a degree in commerce with accountancy as one of the subjects of any University recognised by the State Government in this behalf; and

(iii)

who have experience of maintaining or supervising accounts at least for a period of three years.

(4)

Appointment to the post of Welfare Supervisor shall be made either-

(a)

by deputing an employee not below the rank of a Labour Inspector from the Labour Commissioner Organisation; or

(b)

by deputing an employee of any other department of the State Government and holding a post not below the rank of a Labour Inspector:

Provided that the employee referred to in clause (a) or (b) above may either be deputed to work in whole time Welfare Supervisor or to work in addition to his own duties; or

(c)

by appointing any person who has retired from State Government service and was holding a post at the time of retirement not below the rank of a Labour Inspector; or

(d)

by nomination from among persons-

(i)

who are not less than 30 years and more than 45 years of age;

(ii)

who hold diploma in Labour Welfare or Social Science of any institute recognised by the State Government;

(iii)

who have sufficient knowledge of Hindi and are able to speak, read and write in that language.

(5)

The State Government may for sufficient reasons relax the qualifications laid down in sub-rules (2), (3) and (4).

(6)

A person appointed by nomination under sub-rule (2), (3) or (4) shall be on probation for a period of one year, which may be extended for a further period of one year or part thereof by the Board with the previous approval of the State Government.

(7)

The method of recruitment and the conditions of service of other executive and clerical staff referred to in sub-rule (1) shall be determined by the Board and with the previous approval of the State Government.

(8)

The terms and conditions of service of persons appointed under clause (c) of sub-rule (2) or clause (b) of sub-rule (3) or clause (c) of sub-rule (4) shall be determined by the State Government in consultation with the Board and the terms and conditions so determined shall be binding on the Board.

16.

Scale of pay.

(1)

Subject to the provisions of sub-section (3) of Section 10, the posts of Secretary of the Board Accounts Officer and the Welfare Supervisor shall receive such pay and allowance and shall be governed by such conditions of service as may be determined by the State Government from time to time.

(2)

The pay scales and the allowances of other Staff to be appointed by the Board under sub-rule (1) of Rule 15 shall be equivalent to those of the employees of the State Government holding equivalent post :

Provided that if any dispute arises in deciding the pay scale and allowances of an employee, the decision of the State Government shall be final.

17.

Limitation on Certain Expenditure.

- The Board shall ensure that the expenditure on the staff and other administrative matters shall not exceed 40 per cent of the annual income of the fund :

Provided that the Board may for reasons beyond its control and with the previous approval of the State Government, incur expenditure beyond the limit specified in this rule.

18.

Additional powers of Inspectors.

- livery Inspector shall, for carrying out the purposes of the Act also have the powers to require any occupier to produce any document for his inspection to supply him a true copy of any such document and to give him a Statement in writing.

19.

Annual Report of Board.

- The Board shall, within three months of the closing of the financial year, submit to the State Government an audited Statement of accounts together with an annual report giving its activities during the year.

Form 'A'

[See Rule 3]

1. Name of Slate Pencil Factory.....

2. Name of Occupier.....

3. Year.....

Number of Slate pencils manufactured

No. of boxes containing 1250 Slate pencils

1.

January

2.

February

3.

March

4.

April

5.

May

6.

June

7.

July

8.

August

9.

September

10.

October

11.

November

12.

December

Total

Form 'B'

[See Rule 4(1)]

Madhya Pradesh Slate Pencil Workers Welfare Board.

Book No.....Receipt No..... Received with thanks from Shri the sum of rupees (in words)
..... in cash/Bank Draft towards contribution payable under Section 7 of the Madhya Pradesh Slate Pencil
Karmkar Kalyan Nidhi Adhiniyam, 1982/Voluntary donation/grant-in-aid or Subsidy/loan on the.....Rs.....
Secretary/Authorised Officer.

Form 'C'

[See Rule 5]

1. Name of Slate Pencil Factory.....
2. Name of occupier.....
3. Period (1st December to 31st May or 1st June to 30th Nov.)

S. No.

Months as per 3 above

No. of Slate Pencil Manufactured

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.

Total

To,

The Secretary

Madhya Pradesh Slate Pencil Works, Welfare Hoard.

As required by Rule 5 of the Madhya Pradesh Slate Pencil Karmkar Kalyan Nidhi Rules, 1983 the above Statement is
being sent.

I hereby declare that the above mentioned particulars are true and correct to the best of my knowledge and belief.

Date.....

Signature of Occupier.

Form 'D'

[See Rule 11 (1)]

Office of the Madhya Pradesh Slate Pencil Workers Welfare Board

Cash Book

Receipts

Date of Receipt

No. of Receipt

Particulars of Receipts

Bank Deposit

Cash

- (1)
- (2)
- (3)
- (4)
- (5)

Bank

Other deposits

Miscellaneous receipts

Total receipts

- (6)
- (7)

(8)

(9)

Opening Balance

Expenditure

Date of Expenditure

Serial No. or sub-voucher No.

Particulars of expenditure

Voucher No.

(10)

(11)

(12)

(13)

Bank Deposit

Cash

Bank Deposit

Other Expenditure

Total

(14)

(15)

(16)

(17)

(18)

Total Receipts.....

Grant Total.....

Total Expenditure.

Closing Balance

Grand Total.....

II. Detailed Abstract of Receipts for the month of.....19.....

Date

Receipt No.

Name of Occupier

Amount of contribution under Section 7

(1)

(2)

(3)

(4)

Donation

Grant in aid subsidy

Loan

Deposits for different welfare activities

(5)

(6)

(7)

(8)

Miscellaneous

Sale of old news papers

Sale of Unserviceable articles

Fees for welfare activities

(9)

(10)

(11)

Receipts

Total

Initials

Other Misc. receipts

Interest on Bank or other deposits

Accountant

Accounts Officer

(12)

(13)

(14)

(15)

(16)

III. Classified abstract of pay and allowances for the month of.....19.....

S. No.

Voucher No.

Date

Bill No.

(1)

(2)

(3)

(4)

Officers

Leave pay

Salary Allowance

Provisional pay

Pay

Allowance

(5)

(6)

(7)

(8)

(9)

Other staff allowance

Administration

Allowances

Total Pay

(10)

(11)

(12)

(13)

Allowances

T.A. for Staff on tour

T.A. for members of Board

Leave encashment

(14)

(15)

(16)

(17)

Leave travel concession

Total of each voucher

Initials

Accountant

Accounts Officer

(18)

(19)

(20)

(21)

IV. Classified abstract of contingent expenditure for the month of19.....

Programme Expenditure

S. No.

Voucher No.

Bill No.

Date

(1)

(2)

(3)

(4)

Place

Creche

Community Necessity Other activity

Tailoring class

(5)

(6)

(7)

(8)

Sewing Machine

Subsidiary occupations for workers

Home Industries

Library Rooms

(9)

(10)

(11)

(12)

Workers Education

Entertainment and others recreation

Music

Drama

Cinema show

Radio room

(13)

(14)

(15)

(16)

(17)

Excursions and tours

Other entertainment

Games and Games material

Conveyance

(18)

(19)

(20)

(21)

Sports
Annual Prize
Sports
Miscellaneous
Refreshment
Entry fees
(22)
(23)
(24)
(25)
(26)
Furniture
Electricity and Lighting
Rent rates and taxes
Postage
Bank Commission
(27)
(28)
(29)
(30)
(31)
Printing and Stationery
Vehicles
Other Miscellaneous Replacement of Radio/Musical
instrument
Other Misc.
(32)
(33)
(34)
(35)
Conveyance
Daily wages
Maintenance of building
Administrative contingency
(36)
(37)
(38)
(39)
P.F. Contribution
Gratuity payment
Loans and Advance
Legal
(40)
(41)
(42)
(43)
Grant-in-aid
Others
Total
Accountant/Account Officer
(44)

(45)

(46)

(47)

Form 'E'

[See Rule 11 (10) (2)]

Office of The Madhya Pradesh Slate Pencil Workers Welfare Board

Annual Statement of Accounts for.....

Receipts

Rs. P.

Expenditure

Rs. P.

1. Contribution paid to the Board under Section 7.

1. Pay and allowances of officers

2. Voluntary donations.

2. Pay and allowance of Staff.

3. Grant-in-aid or subsidy paid to the Board by State Government.

3. Pay and allowances of programme administration staff.

4. Loan advance by State Government.

4. Leave salary provision

5. Income from fees

5. T.A. for staff.

6. Deposits for different Welfare Activities

6. T.A. for members of the Board.

7. Interest on Bank or other Deposits.

7. (a) Provident Fund Contribution.

(b) Grant

by Fund Contribution.

8. Misc. Receipts

8. Leave encashment

(a) Sale of

old newspapers, book, periodicals, etc.

9. Leave Travel Concession

(b) Sale of

unserviceable articles

10. Expenditure on programme :-

(c) Other

Misc. Receipts

(a) Grant-in-aid under Section 8

(2) (a)

9. (a) Cash

(b) Treatment for silicosis

(b) Bank

(c) Community necessities

(c) Bank deposits

(i) Creches

(ii) Other

activities

(d) Home Industries and

subsidiary occupations

(i)

Tailoring class

(ii) Sewing
machines

(iii) Other
occupation

(e) Library/reading rooms

(f) Workers education

(g) Primary Health Centers

(h) Dispensaries

(i) Entertainment and other
recreations

(i) Music

(ii) Drama

(iii) Radio

(iv)

Excursion tours

(v) Other

entertainment

(j) Sport and games

(i) Games

material

(ii)

Conveyance

(iii)

Refreshment

(iv) Dress

(v) Entry

fees

(vi) Prizes

(k) Life Insurance Premium

11. Miscellaneous

(i)

Furniture

(ii)

Electricity and lighting

(iii) Rent,

rates and taxes

(iv)

Postage

(v) Bank

commission

(vi)

Printing and Stationery

(vii)

Vehicles

(viii)

Replacement and equipments

(ix) Legal

charges

(x)

Telephone

(xi) Other

miscellaneous

12. Conveyance

13. Daily wages

14. Maintenance of building

15. Administrative contingencies

16. Loan and advance. - _____

Fixed Assets

Sr.No.

Balances on

Balances as on

1.

2.

3.

4.

5.

Summary

1. Receipts.....

2. Expenditure.....

3. Fixed Assets.....

4. Excess expenditure over budgetted amount headwise

5. Savings from Budgeted amount headwise.....

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